

**Justification and Approval (J&A) for Other than Full and Open Competition
Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) Part 6
Implemented by Class Deviation 2026-O0017, Revision 1**

1. Agency and Contracting Activity: The Defense Health Agency (DHA), Enterprise Medical Services – Contracting Division (EMS-CD), 4130 Stanley Road, Bldg. 1000, Suite 208, Joint Base San Antonio (JBSA) Fort Sam Houston, Texas 78234.
2. Nature and/or Description of the Action Being Approved: This action is to award a new, one-year, firm-fixed-price (FFP) contract to H2 Cognitive Designs (H2CD) on a sole-source basis for the procurement of licenses, support, and training for the Cognitive Monitoring Tool. The value of this action is \$ [REDACTED]. This J&A is executed pursuant to the urgent requirement identified by the Under Secretary of War for Personnel and Readiness (USW(P&R)) in support of Operation Epic Fury¹, in direct response to the immediate medical needs of U.S. Service Members in ongoing combat operations. The H2CD Cognitron solution is the only viable solution given the need for rapid deployment due to Epic Fury, particularly considering the speed, security, and functionality required.
3. Description of Supplies/Services Required: The supplies and services required are for an enterprise-wide deployment of a Cognitive Monitoring Tool, to include:
 - Zero-footprint / browser-based
 - Cloud-native architecture
 - API integration services to DOW systems
 - Human performance optimization (HPO)
 - Deployment and Technical Support
4. Statutory Authority Permitting Other Than Full and Open Competition: 10 U.S.C. § 3204(a)(2) as implemented by Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) 6.103-2, "Unusual and Compelling Urgency."
5. Demonstration that the Proposed Contractor's Unique Qualifications or the Nature of the Acquisition Requires the Use of the Authority Cited:

(a) Urgency of Need: Due to ongoing combat operations related to Operation Epic Fury, U.S. forces have an immediate need of a modernized cognitive monitoring tool that is rapidly deployable and scalable for readiness and resilience. To meet this critical, time-sensitive need, the solution must be capable of frictionless enterprise-wide mass deployment that allows for immediate access of modernized, zero-footprint cognitive monitoring tool, with access via a secure URL on any device with a browser. This approach eliminates the logistical hurdles of app store approvals and device management policies, neutralizes any argument about hardware requirements, and dramatically simplifies the cybersecurity posture all while ensuring modernized cognitive testing to the warfighter. Any delay in fielding a tool with this immediate access-anywhere capability will result in a serious reduction in readiness and warfighting capability in support of Operation Epic Fury. This cognitive monitoring tool will meet the

¹ Although a "ceasefire" pause in fighting is currently in place, the Chairman of the Joint Chiefs of Staff has stated that the "Joint Force remains ready if called upon to resume combat operations with the same speed and precision."

immediate Operation Epic Fury need for mass, cognitive screening with zero-footprint on any device (government or personal), with no client-side software installation required. This capability will also ensure baseline cognitive data is available for all future engagement and/or deployments.

(b) Unique Qualifications of Cognitron: The cognitive monitoring tool from H2CD Cognitive Designs is the only available [REDACTED] system with [REDACTED] and required unique capabilities that can be effectively fielded on the urgent, time-sensitive basis required given the ongoing operation. The Market research described in Paragraph 8 below did not reveal additional products that could meet the urgently needed requirement and the current urgency does not allow for full and open competition.

Cognitron is a [REDACTED] that is [REDACTED] that can be used on [REDACTED] and [REDACTED]. The unique qualifications of Cognitron include:

- [REDACTED] The solution delivers a [REDACTED]
- [REDACTED] Supports [REDACTED]
- [REDACTED] In use by the [REDACTED] and [REDACTED]

Cognitron is the only source that provides a [REDACTED] to meet these urgently needed capabilities without an unacceptable delay that would cause serious injury to the government's mission related to Operation Epic Fury. Therefore, H2 Cognitive Designs is the only source capable of meeting the Government's urgently needed requirements.

6. Description of Efforts Made to Solicit Offers from as Many Potential Sources as is Practicable under the Circumstances: IAW RFO 5.101(b)(2) and RFO 6.103-2(b). Due to the compelling urgency described herein, there is not sufficient time to conduct a full and open competition without causing unacceptable delays.

7. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable: The Contracting Officer will determine the final negotiated price is fair and reasonable prior to award, based on a price analysis and the Independent Government Cost Estimate (IGCE).

8. Description of the Market Research Conducted and the Results: A comprehensive market research and analysis was conducted in search of vendors capable of providing a modernized cognitive assessment tool by ASW(HA) and DHA from October 2024 to March 2026, at which time Operation Epic Fury commenced. This market research included the review of alternatives and capabilities of various candidate's tools and their ability to support the monitoring, enhancement, and restoration of cognitive health and performance across the Total Force. After Operation Epic Fury began and the urgent need for a modernized tool arose, the Government concluded that H2 Cognitive Designs was the only source capable of meeting the Government's urgent requirements to deliver a [REDACTED] cognitive assessment tool as dictated by the operational environment based on the market research that had been conducted to date.

9. Any Other Facts Supporting the Use of Other Than Full and Open Competition (data, estimated cost, or other rationale as to whether and how much the Government would be harmed):

Any delay in the implementation of a zero-footprint cognitive testing will impede the government's ability to rapidly evaluate warfighters in forward operations.

10. A Listing of the Sources, if any, that Expressed, in Writing, an Interest in the Acquisition:
To date, no other sources have expressed written interest in this specific, urgent acquisition.

11. The Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition Before Any Subsequent Acquisition for the Supplies or Services Required:
In response to DOD Instructions, USW P&R's requirement to modernize the cognitive monitoring program, Operation Epic Fury requires an immediate need to meet the requirement contained herein. The contract will be for a one-year period of performance. The government plans for all service members to take a baseline test to assess readiness. During this period, the Government will assess long-term requirements and develop a strategy to compete the follow-on requirement to the maximum extent practicable.

12. Technical Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Program Manager
DAD-IO J6

13. Requirements Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Program Executive Office Medical Systems
Chief Information Officer
Defense Health Agency PEO Medical Systems/CIO (J6)

14. Legal Review:

I have reviewed this justification and have found it to be legally sufficient.

[REDACTED]

Associate General Counsel
Office of General Counsel

15. Contracting Officer Determination of Fair and Reasonable Pricing and Certification of Accuracy and Completion.

Fair and Reasonable Cost Determination: I hereby determine the cost to the Government for this contract action is fair and reasonable.

Basis for Determination: In accordance with RFO 12.204(a), a price analysis was conducted to determine the reasonableness of the proposed price. Obtaining Certified Cost or Pricing Data is exempt in accordance with RFO 15.403-2(b)(3).

Contracting Officer Certification: I certify this justification is accurate and complete to the best of my knowledge and belief.

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Raul Garcia
Contracting Officer
EMS-CD